UTKARSH KUMAR
ADVOCATE

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Academic Qualifications

Dr. Ram Manohar Lohiya National Law University, Lucknow, India **(2016-2021)**
B.A. LL.B (Hons.) Specialization: Business Laws
CGPA: 7.12 on a scale of 10 (first division)
Higher Secondary, ISC: City Montessori School, Lucknow - 89.25% **(2013-2015)**
Senior Secondary, ICSE: City Montessori School, Lucknow - 81.8% **(2008-2013)**
Empanelled Advocate- National Highways Industrial Development Corporation Ltd. and IIM, Lucknow

Professional Experience

Chambers of Mr. Abhikalp Pratap Singh, Advocate on Record (Building No. 80, Second Floor, Golf Links, New Delhi-110003). **(June, 2024, - Present)**

Hon'ble Supreme Court of India

- Regularly appear and represent various private clients (individuals and corporations) involving different subject matters including Civil and Commercial Disputes, Service Matters, Criminal Matters, Matrimonial Disputes.
- Regularly appear and assist senior counsels representing State of Maharashtra, State of Meghalaya, Punjab and Haryana High Court before Hon'ble Supreme Court of India.
- Appeared and assisted on behalf of several government corporations such as National Highway Authorities of India Ltd., Gas Authority of India Ltd., India Infrastructure Finance Corporation Ltd., Slum Rehabilitation Authority, National Mineral Development Corporation, Airports Authority of India Ltd., Maharashtra State Electricity Distribution Company Ltd. ("MSEDCL")
- Appeared and assisted on behalf of Respondent in the case of Sharad Pawar v. Ajit Anantrao Pawar, SLP (C) No. 4248/2024.
- Appeared and assisted the Respondent in the case of Tarabai Nagar Co-op Housing Society v. State of Maharashtra.

Arbitration

- Representing the Respondent- NMDC in the case of ICC Case No. 29383 (Tata Projects Ltd. v. NMDC Steel Ltd. & Anr.) before the Arbitral Tribunal comprising of Ms. Lindy Patterson KC (United Kingdom), HMJ D.Y. Chandrachud (Former CJI, Retd.), HMJ M.R. Shah (Former Judge, Supreme Court).
- Representing NHAI in several case including arbitration between-
  i. Srinagar Banihal Expressway Ltd. v. NHAI, currently pending before the Arbitral Tribunal comprising of HMJ Dipak Mishra (Retd.), HMJ S. Ravindra Bhat (Retd.), Mr. Dinesh Kumar Mittal, IAS (Retd.)
  ii. DBL Anandapuram Anakapalli Highways Ltd. v. NHAI, currently pending before the Arbitral Tribunal comprising of Mr. S. Jaswant Kumar, Chief Engineer (Retd.) (R&B), Mr. Radhey Shyam Julaniya, Mr. Jayant Dasgupta, IAS (Retd.)
  iii. DBL Sangli Borgaon Highway Ltd. v. PIU-Kolhapur, NHAI, currently pending before the Arbitral Tribunal comprising of J. A.K. Patnaik (Retd.), Mr. Sanjay Kumar Srivastava, IAS (Retd.), Mr. Dinesh Kumar Mittal IAS (Retd.)
- Representing the Respondent- NMDC in Arbitration No. 49 (M/s Elecon Engineering Company Ltd. v. NMDC) before the Arbitral Tribunal comprising of Justice P. Naveen Rao, Former Acting Chief Justice, High Court for the State of Telangana.

Chambers of Mr. Ravi Raghunath and Ms. Aakashi Lodha, Advocates on Record **(Associate- November, 2023 – May, 2024)**

The Hon'ble Supreme Court of India

- Drafted and filed several SLPs and reply to the SLPs involving subject matters of Commercial Laws, Civil Laws, Criminal Laws and Direct Taxation before the Hon'ble Supreme Court of India.
- Represented various Companies and drafted appeals and reply to the appeals arising under Section 62 of the Insolvency and Bankruptcy Code, 2016.
- Assisted Senior Counsels by making briefs and case notes in several cases before the Hon'ble Supreme Court of India.

The Hon'ble Delhi High Court

- Assisted the Ld. Amicus Curiae in the case of- *In re: Suicide Committed by Sushant Rohilla v. Amity Law School and Ors.* which involves important questions concerning mental health issues and mechanisms to be adopted by various educational institutions in preventing suicide among students.
- Assisted in drafting and researching various cases involving suits of testamentary nature, company laws, arbitration and IPR.
- Assisted senior counsel in the case of Bayer Healthcare v. Natco Pharma LLC by researching on various propositions and made detailed comparisons of Indian and US Jurisprudence with respect to granting of patents.
- Participated in various mediation proceedings for facilitating amicable settlement between parties.

NCLAT and NCLTs

- Drafted several Appeals before the Ld. NCLAT arising from Ld. NCLT throughout the country and assisted in research of the case laws.
- Assisted and researched on cases relating to oppression & mismanagement and rights issue under the Companies Act, 1956 and Companies Act, 2013.
- Drafted interlocutory applications before the NCLT, New Delhi Bench and assisted by making research notes and briefs.
- Represented and filed appeals on behalf of suspended directors of various companies against the judgments passed by the Adjudicating Authorities in various cases.

NCDRC, RERA and District Courts

- Appeared and assisted in various cases before the NCDRC involving disputes of medical negligence claims and builder disputes.
- Appeared before the Haryana Real Estate Regulatory Authority and filed an Execution Petition against builder for release of decreed amount in favor of the Decree Holder.
- Drafted, filed and worked on several civil suits seeking reliefs of injunction, recovery of money, succession, declaration, cases involving applicability of small causes courts and tenancy disputes.
- Represented Power Grid Corporation across various forums throughout the Courts of New Delhi.

Chambers of Mr. Pritish Kumar, Additional Advocate General **(Associate – July, 2021 – October, 2023)**

(Intern – July, 2020 – March, 2021)

Appeared and argued several cases before the Hon'ble Allahabad High Court, Lucknow Bench, Commercial Courts, SCDRC, NCDRC, NCLT, Public Services Tribunal, District Courts, etc. and have been actively participating in cases before various Arbitral Tribunals which includes several independent cases, have also briefed counsels, researched on relevant issues and participated in the full range of activities while handling the following matters:

Hon'ble Allahabad High Court, Lucknow Bench

- Represented various litigants against State in service matters pertaining to release of pensionary benefits, gratuity, promotion, disciplinary actions and payment of arrears of retiral dues, salary, etc.
- Represented and assisted Senior Counsel in various cases in the nature of second appeal involving complex civil & commercial disputes pertaining to possession of property, title dispute, cases seeking declaration and injunction before the Hon'ble Court.
- Represented and assisted Senior Counsel in drafting several Writ Petitions.

Commercial Litigation and Advisory

- Advised and represented Shapoorji Pallonji group before the Commercial Court, Lucknow against Uttar Pradesh Awas Vikas Parishad (UPAVP).
- Drafted and initiated proceedings against Kellon Tech Solution Ltd., before the Commercial Court in a case for breach of agreement in the development of m-Swasthya Application for the benefit of Anganwadi Workers representing SIFPSA (State Innovations in Family Planning Services Project Agency), a joint venture entity of Government of India, USAID and Government of Uttar Pradesh under Indo-US bilateral agreement for implementingthe Innovations in Family Planning Services (IFPS) in the State.
- Advised and represented UCM Coal Company Ltd., for setting aside of an arbitral award passed in favor of the Adani Group in a proceeding arising out of the Coal Allocation Scam.
- Represented and assisted Sahakar Global Pvt. Ltd., against Uttar Pradesh Expressways Industrial Development Authority (UPEIDA) before the Commercial Court and was even able to seek a relief temporary injunction against

UPEIDA effectively preventing them from invoking Bank Guarantee for an amount of Rs. 33,53,25,000/-.

- Advised and drafted various agreements, 'Memorandum of Association' and 'Memorandum of Understanding' for several companies and entrepreneurs established in Lucknow.
- Advised and drafted several lease documents for various companies and entrepreneurs.
- Represented the Reserve Bank of India (RBI), Housing Development Finance Corporation (HDFC), SGPGI, UPRVUNL before several courts throughout Lucknow.
- Represented several companies in disputes against Railways Authorities for breach of agreement.

Arbitration

- Advised and successfully represented a company incorporated under the Indian Companies Act, 1956 against Lucknow Development Authority before the Sole Arbitrator, Hon'ble Justice K.S. Rakhra (Retd.).
- Represented the lessors and actively participated in a commercial lease dispute against the Decathlon Group before the Sole Arbitrator, Hon'ble Justice D.P. Singh (Retd.), (Former Chief Justice of Allahabad High Court).
- Represented Shalimar Group, luxury property builders in Lucknow before the Sole Arbitrator, Hon'ble Justice Harsh Kumar (Retd.) in a case for determining lawful title of the demised property. Subsequently, effectively participated in facilitating mutual settlement of the dispute between the parties.
- Advised and independently represented several consultancy firms in disputes against State Authorities before several arbitral tribunals.
- Represented and provided assistance in several arbitration matters pertaining to construction contract disputes.
- Represented NHAI and assisted senior counsel in statutory arbitration proceedings.

PRE-QUALIFICATION EXPEREINCE

Intern, Hon'ble Justice Rajan Roy, Allahabad High Court, Lucknow Bench (May, 2018)

- Assisted the Hon'ble Court by preparing brief notes for the cases argued before it and researched for case laws on the relevant points of determination for the cases being argued before the Hon'ble Court.

Intern, Chambers of Mrs. Stuti Gujral, Advocate, Delhi (December, 2018)

- Visited the trial courts across Delhi, read various case files mainly relating to criminal trial suits, researched several case laws for the AgustaWestland Case and prepared case notes.

Intern, Chambers of Mr. Prashant Chandra, Senior Advocate, Lucknow (May, 2019- July, 2019)

- Assisted in preparation of speaking notes before the Hon'ble High Court for several cases, assisted in researching of case laws with respect to mutation of property and possession of property. Drafted list of dates and events.

Intern (Competition Law), Luthra & Luthra Law Offices, New Delhi (December, 2019)

- Frequently visited the Hon'ble Delhi High Court and the NCLAT after being assigned certain cases from the team. Drafted detailed notes for the cases assigned for that particular day and briefed the team accordingly. Actively participated in providing research assistance to the team in the case of Coal India Ltd. v. CCI, pending before the NCLAT. Further prepared case briefs and detailed notes on several landmark judgments of Competition Law.

Honours and Awards

- Global Rank- 6th, Herbert Smith Freehills Competition Law Moot Court Competition, organized by the Dickson Poon School of Law, Kings College, London, 2020.
- Winner, 7th NLIU National Corporate Law Moot Court Competition, 2018 organized by National Law Institute University, Bhopal.
- Best Memorial Award and Semi-finalist, Ninth NLU Antitrust Law Moot Court Competition, 2018 organized by National Law University, Jodhpur in association with Shardul Amarchand Mangaldas & CCI.
- Best Memorial Award and Semi-finalist, Insolvency and Bankruptcy Moot Court Competition, 2018 organized by National Law University, Delhi.
- 2nd Best Memorial Award and Quarter Finalist, Surana & Surana Trial Advocacy Moot Court Competition, 2019.
- 9th Position, Second Jindal Technology Law and Policy Moot Court Competition, 2017 organized by O.P. Jindal Global University, Sonepat.
- Winner, University Moot Court Selections, 2017 organized by the Moot Court Committee, Dr. Ram Manohar Lohiya National Law University, Lucknow.
- Runners-up, Concours Moot Court Competition for freshers, 2016, organized by the Moot Court Committee, Dr. Ram Manohar Lohiya National Law University, Lucknow.